

Calendar Line 8

Case Name: *Brian Ramirez Serbantes v. Deshon II Holmes*

Case No.: 25CV471079

Before the Court is Defendant Deshon II Holmes' ("Defendant") motion to strike Plaintiff Brian Ramirez Serbantes' ("Plaintiff") request for punitive damages.

This is a personal injury action arising out of an automobile collision. According to the allegations of the operative First Amended Complaint ("FAC"), on February 6, 2024, Plaintiff was making a right turn onto westbound Berryessa Road in San Jose when, while he was halfway onto the road, Defendant collided with Plaintiff's semi-truck. (FAC, ¶ 6.) Plaintiff alleges that Defendant was intoxicated at the time of the incident. (*Id.*, ¶ 10.) Plaintiff filed the FAC on November 19, 2025, asserting a single cause of action for negligence and requesting punitive damages.

Defendant moves to strike Plaintiff's request for punitive damages on the ground that he has not pleaded sufficient facts to establish an entitlement to recover such damages.

Where nonintentional torts involve conduct performed without intent to harm, punitive damages may be assessed 'when the conduct constitutes conscious disregard of the rights or safety or others.' '[A] conscious disregard of the safety of others may [thus] constitute malice within the meaning of section 3294 of the Civil Code. In order to justify an award of punitive damages on this basis, the plaintiff must establish that the defendant was aware of the probable dangerous consequences of his conduct, and that he willfully and deliberately failed to avoid those consequences.' Consequently, to establish malice, 'it is not sufficient to show only that the defendant's conduct was negligent, grossly negligent, or even reckless.'" (*Bell v. Sharp Cabrillo Hosp.* (1989) 212 Cal.App.3d 1034, 1044 (*Bell*).)

In *Taylor v. Superior Court* (1979) 24 Cal.3d 890 (*Taylor*), the California Supreme Court addressed the issue of punitive damages in the context of drunk driving. The plaintiff had alleged that the defendant was intoxicated when he hit plaintiff's car, injuring him, and had also alleged that the defendant had prior drunk driving accidents, arrests and incidents, and had just completed probation for a drunk driving conviction at the time of the incident. (*Id.* at 893.) The court found the allegations sufficient to support a claim for punitive damages because they supported knowledge and disregard of probable injury to others, but notably did *not* hold that punitive damages are always appropriate in cases involving driving while intoxicated, explaining "we have concluded that the act of operating a motor vehicle while intoxicated *may* constitute an act of 'malice' under [Section 3294] if performed *under circumstances* which disclose a conscious disregard of the probable dangerous consequences." (*Id.* at 892, emphasis added.)

The rationale in *Taylor* was discussed and interpreted in *Dawes v. Superior Court* (1980) 111 Cal.App.3d 82, 88 (*Dawes*), a case in which the defendant drove at a high speed while zigzagging through traffic in the middle of the afternoon and in locations of high pedestrian and vehicle traffic. (*Id.* at 88.) The appellate court found the circumstances constituted more than "ordinary driving while intoxicated," reasoning that "[t]he risk of injury to other from ordinary driving while intoxicated is certainly foreseeable, but it is not necessarily probable," and punitive damages may be warranted where the circumstances

surrounding the defendant's decision to drive while intoxicated made the risk of harm to others probable. (*Ibid.*)

In the FAC, Plaintiff alleges that Defendant "knew that consuming alcoholic beverages impaired his ability to safely drive a motor vehicle and that driving a motor vehicle while intoxicated created an unreasonably dangerous situation which increased the likelihood of an accident causing injury to other drivers and pedestrians" but "in willful and conscious disregard of the safety of such persons and of Plaintiff herein, continued to consume alcoholic beverages to the point of intoxication and thereafter drive his vehicle while intoxicated." (FAC, ¶ 10.) These allegations represent the entirety of Plaintiff's allegations in support of his request for punitive damages and, in line with the reasoning of *Taylor* and *Dawes*, both of which made clear that not every collision involving intoxicated driving will support malice and oppression, are insufficient to demonstrate his entitlement to such damages. While the foregoing allegations contain several necessary key terms and phrases for punitive damages, they do *not* contain *facts* to support allegations of conscious disregard and probably injury to others.

Therefore, Defendant's motion to strike is GRANTED WITH 10 DAYS' LEAVE TO AMEND.

The Court will prepare the final order.

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